

LEX NON COGIT AD IMPOSSIBILIA

“The Law Does Not Compel the Impossible”

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Introduction

Lex non cogit ad impossibilia is a Latin maxim which means that “**the law does not compel a person to do what the impossible.**” It encapsulates a foundational principle of justice : legal obligations must operate within the limits of human capacity.

Law is designed to regulate conduct through reasonable standards, not to impose duties that are incapable of performance. Where compliance becomes genuinely impossible due to circumstances beyond a person’s control, insisting on strict performance would defeat, rather than advance, the ends of justice.

The maxim, therefore, functions as an important canon of legal interpretation, ensuring that the application of law remains practical, equitable, and compatible with the fair administration of justice. In India, it has assumed particular significance in the domains of contract law, administrative law, and constitutional jurisprudence.

Meaning and Origin

The maxim has its roots in Roman law, where judicial decision-making was guided by equity and rationality. Over time, it was absorbed into the common law tradition as a principle restraining courts from enforcing obligations that have become impossible to perform.

At the same time, the maxim does not furnish a general excuse for every onerous or burdensome duty. Its operation is confined to situations in which performance has become genuinely impossible owing to circumstances beyond the control of the obliged party. Courts therefore draw a clear distinction between true impossibility, on the one hand, and mere inconvenience, financial hardship, or difficulties that could reasonably have been avoided, on the other, before applying the principle.

Application in Indian Law

Indian courts have consistently invoked this maxim to ensure that legal obligations are constructed and enforced in a reasonable manner.

Its most explicit statutory reflection is found in **Section 56 of the Indian Contract Act, 1872**, which embodies the doctrine of frustration. This provision renders a contract void when an act, which was the foundation of the agreement, becomes impossible or unlawful after the contract is concluded.

In *Satyabrata Ghose v. Mugneeram Bangur & Co.*, AIR 1954 SC 44, the Supreme Court held that impossibility under Section 56 is not confined to situations of literal or physical impossibility. A contract may also be regarded as impossible of performance where supervening events fundamentally alter the nature, purpose, or basis of the agreement, thereby rendering performance impracticable in a real and substantive sense.

Beyond the law of contract, the maxim also informs the principles of administrative and constitutional law. Administrative authorities are not expected to insist on compliance with conditions that have, due to subsequent events, become impossible to satisfy. Similarly, procedural

and constitutional provisions are interpreted in a manner that preserves fairness and prevents the imposition of unrealistic or unattainable legal burdens on individuals or institutions.

Judicial Recognition

The Indian judiciary has repeatedly affirmed the continuing relevance of *lex non cogit ad impossibilia* as a principle grounded in justice and reason.

In *Satyabrata Ghose*, the Supreme Court expanded the understanding of impossibility under Section 56 by expressly recognising practical or commercial impossibility alongside strict physical impossibility.

The principle received further judicial endorsement in *IN Re: Special Reference No. 1 of 2002*, (2002) 8 SCC 237, where the Supreme Court observed that constitutional and statutory provisions must be applied in a pragmatic manner when extraordinary or unforeseen circumstances render strict compliance impossible. The Court reaffirmed that the law must take account of practical realities while still safeguarding its underlying purposes and objectives.

Importance of the Maxim in Legal Doctrine

The enduring importance of this maxim lies in its capacity to reconcile legal certainty with substantive fairness. It acts as a restraint on the rigid enforcement of obligations that no reasonable person could discharge and protects individuals from liability arising solely from genuine supervening impossibility. By encouraging a realistic and context-sensitive interpretation of legal duties, the maxim strengthens public confidence in the legal system and reinforces the value of equity, reasonableness, and good conscience.

Conclusion

Lex non cogit ad impossibilia remains a central principle of legal interpretation because it maintains that justice must not be subordinated to mechanical or technical rigidity. Its consistent recognition by Indian courts demonstrates that legal obligations must always be assessed in light of concrete factual circumstances and practical constraints. Through its application in contract, administrative, and constitutional law, the maxim continues to mediate the relationship between the rule of law and fairness. By refusing to compel the impossible, the legal system preserves both the normative authority of law and the fundamental ideals of justice.